

		manner that ensures that Defendants have sufficient notice under the code pursuant to the new hearing date. Further, for the court's convenience, Plaintiff is also ordered to file a redlined version of the proposed revised second amended complaint that shows the changes from the first amended complaint to the second amended complaint with the amended notice. Opposition and reply papers may be filed pursuant to the code based on the new hearing date. Plaintiff to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to January 28, 2027, at 1:30 p.m. in this department. Plaintiff to give notice. <u>Review Hearing re: Bankruptcy</u> The Review Hearing re: Bankruptcy is continued to January 28, 2027, at 1:30 p.m. in this department. Plaintiff to give notice.
6	Fuery v. McCabe	Off calendar.
7	Bischoff v. General Motors, LLC	Defendant General Motors, LLC's motion to strike portions of the complaint by Plaintiffs Doug Bischoff and Paige Bischoff is GRANTED with 20 days leave to amend. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. Code Civ. Proc. § 431.10(b). Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (<i>Perkins v. Superior Court</i> (1981) 117 Cal. App. 3d 1, 6). Defendant General Motors moves to strike allegations related to civil penalties on the grounds that Plaintiffs failed to allege facts to establish that Plaintiff complied with Code of Civil Procedure section 871.24. Code of Civil Procedure Section 871.24 requires that "at least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following: 1) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a